NON-DISCLOSURE AGREEMENT (NDA)

Effective Date: 10 July 2026
This Non-Disclosure Agreement ('Agreement') is entered into between ABC Technologies Pvt. Ltd., Ahmedabad, Gujarat ('Disclosing Party'), and John Smith, Software Developer ('Receiving Party').

1. Purpose

The parties wish to discuss a potential software development partnership. During these discussions, confidential information may be shared.

2. Definition of Confidential Information

Confidential Information includes business plans, software source code, product designs, financial information, customer databases, marketing strategies, trade secrets, and technical documentation. Information already public or independently developed by the Receiving Party is not considered confidential.

3. Obligations of the Receiving Party

Keep all Confidential Information confidential; use it only for evaluating the proposed business relationship; do not disclose it without written consent; protect it using reasonable security measures.

4. Restrictions

The Receiving Party shall not copy or distribute confidential documents without authorization, reverse engineer proprietary software, or share confidential information with competitors.

5. Term and Termination

This Agreement remains effective for three (3) years from the Effective Date. Either party may terminate the Agreement with 30 days' written notice. Confidentiality obligations survive termination for an additional five (5) years.

6. Intellectual Property

All intellectual property rights remain the exclusive property of the Disclosing Party. No ownership rights are transferred.

7. Liability

The Receiving Party is liable for unauthorized disclosure caused by negligence or intentional misconduct. The Disclosing Party may seek damages and injunctive relief.

8. Governing Law

This Agreement is governed by the laws of India. Disputes shall be subject to the exclusive jurisdiction of the courts in Ahmedabad, Gujarat.

9. Force Majeure

Neither party is liable for failure to perform due to events beyond reasonable control, including natural disasters, government actions, or war.

10. Entire Agreement

This Agreement constitutes the entire understanding between the parties.

Signatures

Disclosing Party: ABC Technologies Pvt. Ltd.
Authorized Signatory: Rajesh Patel

Receiving Party: John Smith
Signature: _____